

[Login](#)[Subscribe](#)

Trendency's Political Trendwatch > Posts > Younger Voters and the Supreme Court

Younger Voters and the Supreme Court

A Look at Younger Perspectives After a Busy Summer



Stefan Hankin

September 10, 2024



Younger Voters' Perceptions Regarding the Supreme Court

The US Supreme Court ended the 2023-2024 term by handing down key decisions that are sure to have long-lasting effects. With rulings such as Presidential immunity, the permission for cities to ban camping in public places, and the overturning of Chevron, voters are sure to have varying opinions regarding the Supreme Court. While knowledge of many cases



before the Court varies significantly, the overturning of Roe has put a brighter-than-usual spotlight on the Court.

Not shockingly, the biggest predictor of opinions is based on partisanship and the results of that analysis are incredibly predictable. That being said, we thought it would be interesting to look at the views of the Supreme Court by age, as younger Americans are naturally going to be dealing with the outcomes of these cases for a much longer time period than their older counterparts. Further, it is also the case that once opinions are set it is much harder to move those views over time.

For the purposes of this analysis, we looked at Americans under the age of 40, combining adult Millennials and GenZ together, and looked at the data ending a couple of weeks after the end of the 2023-2024 session of the Supreme Court when many cases were in the news and being discussed on a regular basis. We also took a look at one of the cases from this term that had some of the more interesting opinions within this cohort (Grants Pass v. Johnson which dealt with homelessness).

General Outlook on the Supreme Court

As shown in Figure 1, approval of the Supreme Court among younger voters has been fairly low over the past two years and has also changed since the Dobbs ruling in June of 2022. In the middle of 2022, the average percentage of time Americans under 40 disapprove of the Court was 45% and the average approval was 39% of the time. As a reminder, we do not ask our panelists whether they approve or disapprove, but instead ask what percent of the time they approve of the Court, and what percent of the time they disapprove. The negative view was the prevailing view throughout the second half of 2022 and early 2023. By the end of the 22/23 term approval and disapproval were roughly even at about 41%.

Throughout the following session, the numbers ebbed and flowed slightly, but the general movement for both positive and negative movement was in a slight downward trajectory. Right at the end of the 23-24 session, disapproval spiked, but then both views settled at 40%.



Supreme Court Approval

Trendlines for Voters Ages 18-39

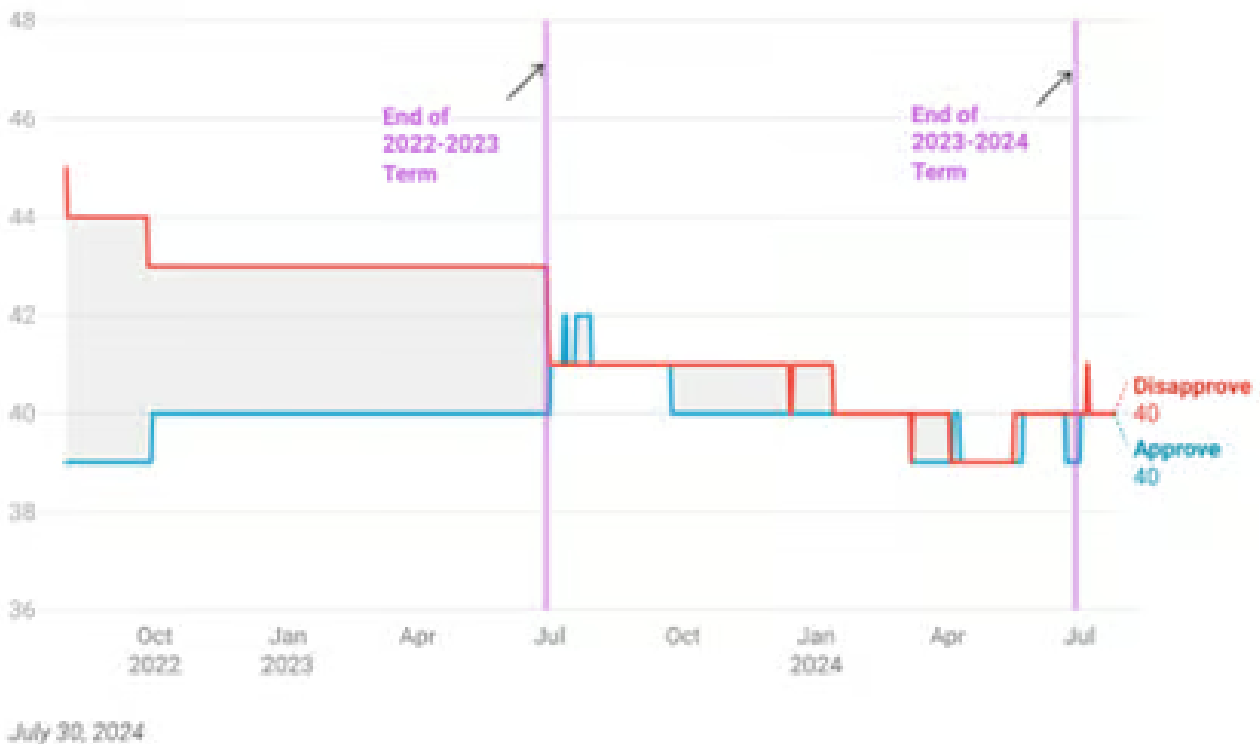


Figure 1: Supreme Court Approval - Trendlines for Voters Ages 18-39

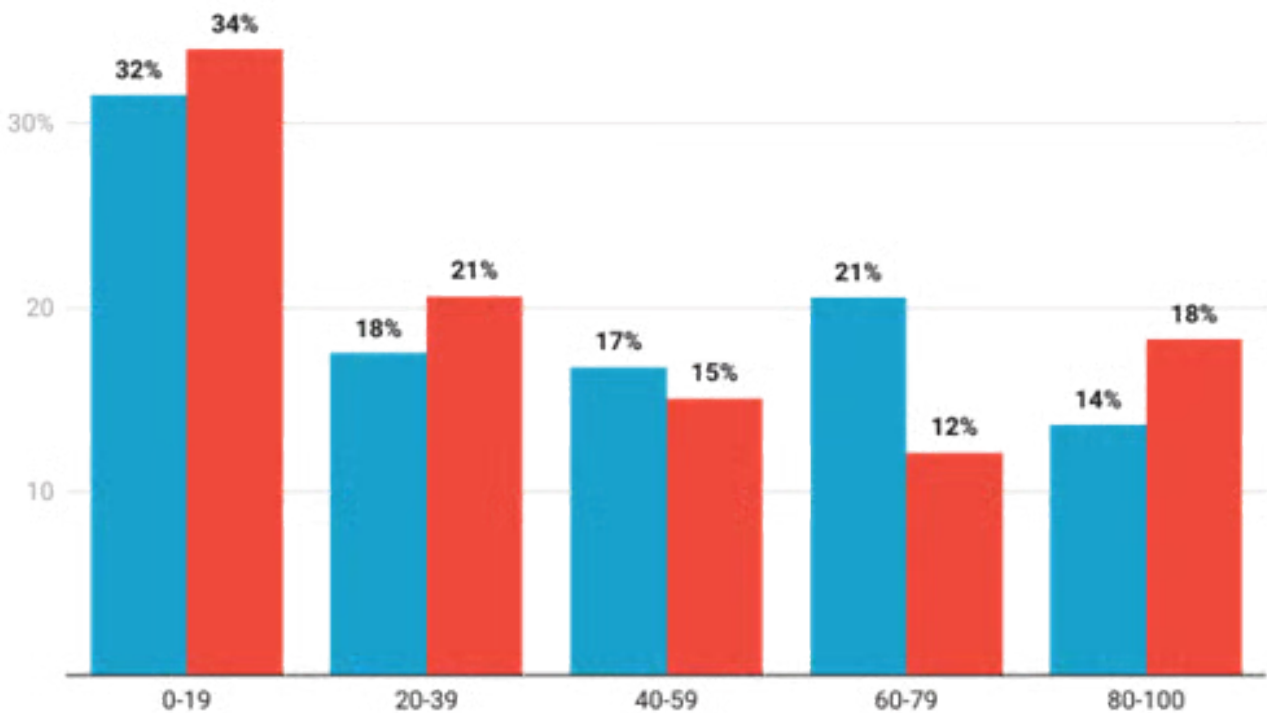
When we look at the distribution of these opinions we see that about one-third of the voters allocate 0-19 points for both approval and disapproval towards the Supreme Court. The fact that nearly half of younger Americans fall in the middle range of responses (20-79) tends to indicate that minds are not made up on these opinions, and therefore have a greater ability to shift. Additionally, there are a relatively small number of people who have strong opinions on the Court, with 14% strongly approving, and 18% strongly disapproving.



Supreme Court Approval

Distribution of Opinion for Voters Ages 18-39

■ Approve ■ Disapprove



July 30, 2024

Figure 2: Supreme Court Approval - Distribution of Opinion for Voters Ages 18-39

When we start looking at different demographic differences, within the two youngest generations of Adults, we find that partisanship is, as expected, a big driver of differences, but so are gender and race.

When it comes to partisanship illustrated in Figure 3, younger Democrats and Independents tend to hold similar views of the Supreme Court, while younger Republicans are more likely to approve of the Court. That being said, while the opinions between Independents and Democrats ended in a similar place this past July, the journey from the end of the 22/23 term to the latest term was very different for these two cohorts.

Between July of 2023 and July of 2024, there was volatility in the Republicans' and Independents' ratings of the Court, while Democrats' views remained relatively consistent. For younger Republicans, the latest session tended to have a more positive effect on the approval ratings, while the opposite was true for Independents. Moreover, disapproval



among Democrats rose after the latest session but was lower than the negative views held after the summer following the Dobbs decision.

Supreme Court Approval

Trendlines for Voters Ages 18-39 by Party Affiliation

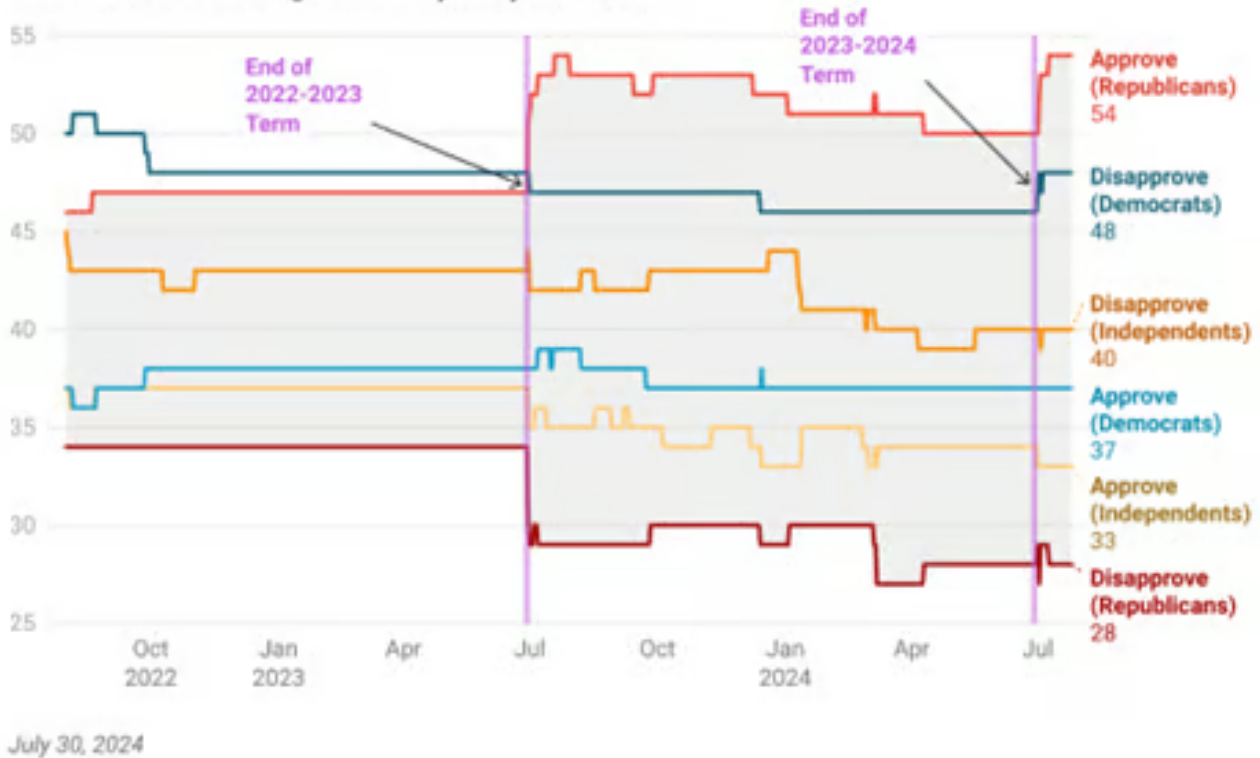


Figure 3: Supreme Court Approval - Trendlines for Voters Aged 18-39 by Party Affiliation

While Democrats and Independents hold more negative views of the Court, they are also much more closely divided on their views than younger Republicans. Currently, the difference between approval and disapproval ratings for Democrats and Independents are minimal at only 9 and 4 points, respectively, while the gap between approval (54) and disapproval (28) for Republicans is 26 points. Also worth noting is the sharp increase in approval among Republicans right after this latest session, and the increased disapproval among younger Democrats. On the other hand, Independents' views did not change much in the weeks after the last set of rulings. Since there were many decisions released within a few days it is tough for us to pinpoint the exact reason for these differences; however, our hypothesis given the partisan nature of the movement is that the decisions around Presidential immunity were likely the biggest driver.

Outside of partisanship, gender also has a big effect on the views that younger Americans hold when it comes to the Supreme Court. Men are more likely to approve of the Court,



disapprove 47% of the time while approve just 31% of the time. Interestingly the delta between the two views is identical for the two cohorts (16 points). It is also interesting to see that while men's approval and disapproval ratings have remained relatively stable over time, women's trendlines are both more volatile and also resemble the overall trend more closely with approval slightly rising and disapproval falling after the 2023 Court rulings.

Supreme Court Approval

Trendlines for Voters Ages 18-39 by Gender

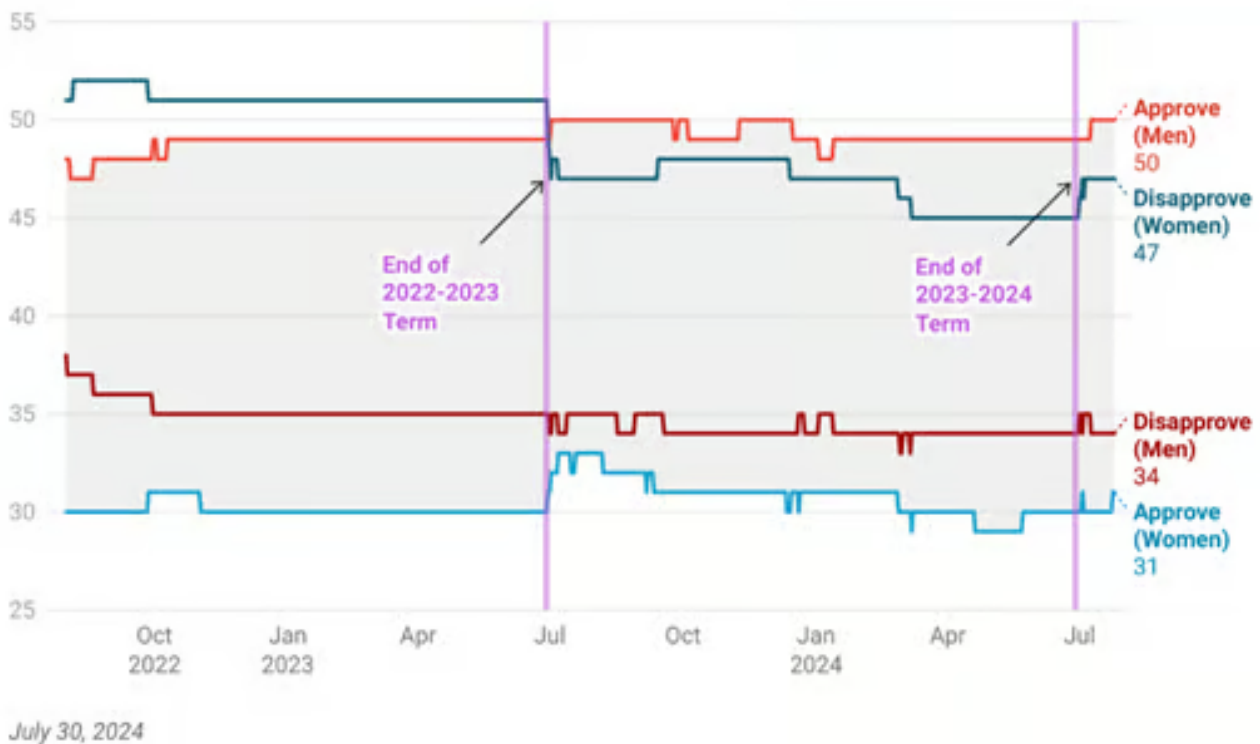


Figure 4: Supreme Court Approval - Trendlines for Voters Ages 18-39 by Gender

Similar to partisanship and gender, a stark difference in opinion exists when we look at race and ethnicity. Young Latinx/Hispanic and Black voters are more likely to approve of the Court overall, whereas younger White voters are more likely to disapprove of the Supreme Court's functioning. Over the past 2 years, there was virtually no fluctuation in how White and Black voters felt about the Supreme Court. Conversely, Latinx/Hispanic voters fluctuated in their views as their approval rose by 8 points to 48 and disapproval dipped by 7 points to 24 over the past 2 years, while White and Black Americans under the age of 40 only moved by about a point on either end.



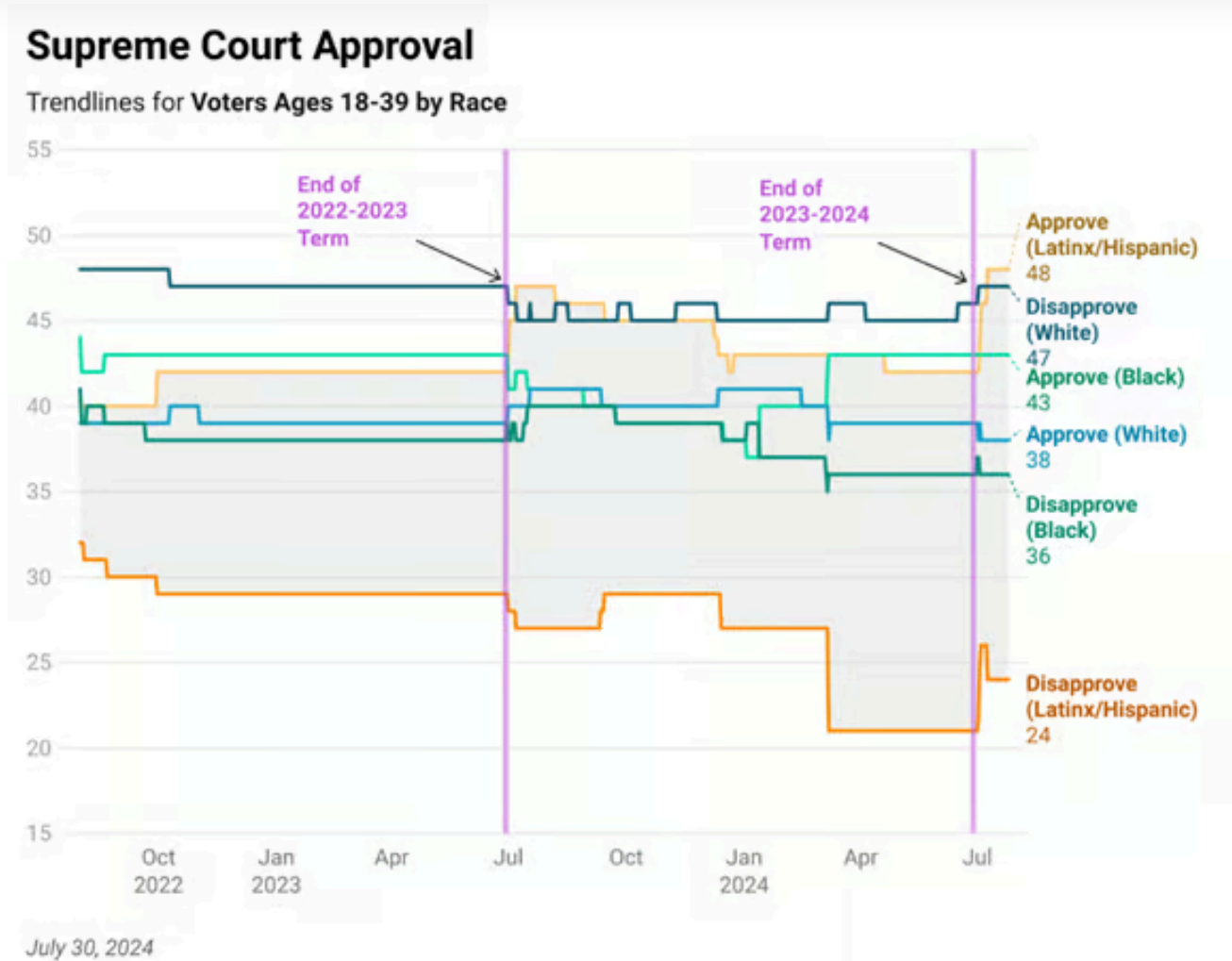


Figure 5: Supreme Court Approval - Trendlines for Voters Ages 18-39 by Race

Perspectives Regarding the Supreme Court Homelessness Ruling

As part of our analysis, we also looked at some of the more high-profile cases from the last term, and while there were predictable results in the more partisan cases, the case dealing with homelessness (*Grants Pass v. Johnson*) had some of the more interesting and unexpected results.

On June 28, 2024, the Supreme Court ruled that cities are allowed to ban people from sleeping in public places. Opinions on the ruling had a clear partisan divide, but the differing views based on race and ethnicity were not far behind. Looking at the breakdown of the allocations for the major demographic groups among young voters, the most significant divide is observed along party lines with Republicans strongly agreeing with the ruling (78%) whereas just 21% of Democrats agreed. The delta on the negative side was



similar (53 points), and both groups had a similar level of members who were not sure how they felt about the case.

Younger men tend to approve of the ruling although there is a much higher level of diversity of opinions than when looking at partisanship. Overall, 57% of men agree with the decision, while 32% disagree, a 25-point advantage for those agreeing. Among women, the prevailing opinion is one of disagreement. On average, 37% of women under the age of 40 agree with the decision, while 46% disagree, a nine-point delta between the two.

Supreme Court Homelessness Ruling Opinion

Demographics for Voters Ages 18-39

	▼ Agree	Disagree	Not sure
Latinx/Hispanic*	98	2	0
Republicans	79	13	8
Men	57	32	9
Overall	47	39	12
Independents	45	32	19
Black/African American	44	52	2
Women	37	46	15
White	35	47	16
Democrats	21	66	10

July 30, 2024 | *Smaller sample size

Figure 6: Supreme Court Homelessness Ruling Opinion - Demographics for Voters Ages 18-39

When looking at the distribution of opinion among men and women we can see that the averages are somewhat masking the differences in opinion. Overall 51% of men strongly agree with the ruling (80 or higher on the 0 to 100 scale), while just 31% of women share this opinion. Interestingly when it comes to disagreement, the difference is smaller. Thirty-eight percent (38%) of women indicated that they strongly disagreed with the ruling while 23% of men held the same view. What is interesting here is that men show consistency in



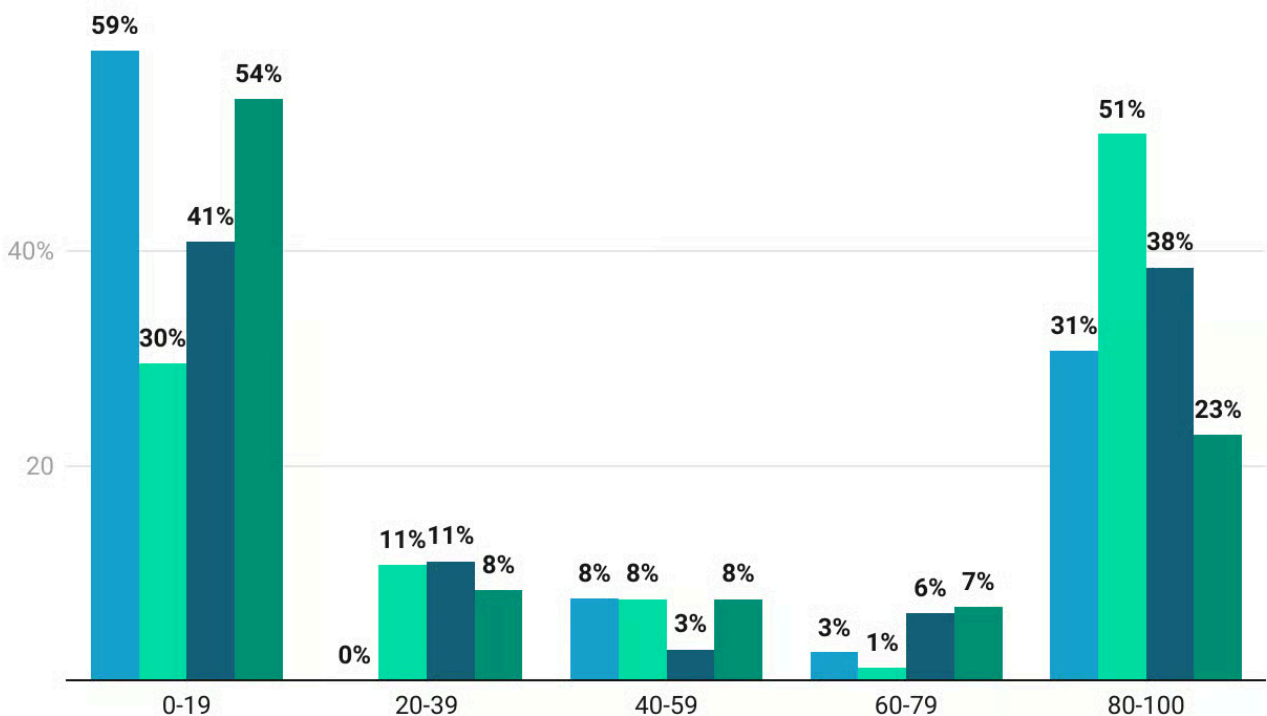
disagreeing. This reads as a double negative, but what these two views show is where the stronger motivation is coming from. This is similar to support for a candidate where the motivation can be coming from the positive (I am voting for this person) or the negative (I am voting against this candidate's opponent).

In this case, support for the decision among men is roughly equal to those rejecting the idea of opposing the ruling. For women, there is a noticeable difference, where 38% of younger women strongly disagree with the decision, while 59% do not support the decision. Said more succinctly, younger men tend to agree with the decision and are motivated by the positive view of the decision, while younger women are divided in the motivation for not supporting the decision.

Supreme Court Homelessness Ruling Opinion

Distribution of Opinion for **Voters Ages 18-39 by Gender**

Agree (Women) Agree (Men) Disagree (Women) Disagree (Men)



July 30, 2024

Figure 7: Supreme Court Homelessness Ruling Opinion - Distribution of Opinion for Voters AGes 18-39 by Gender

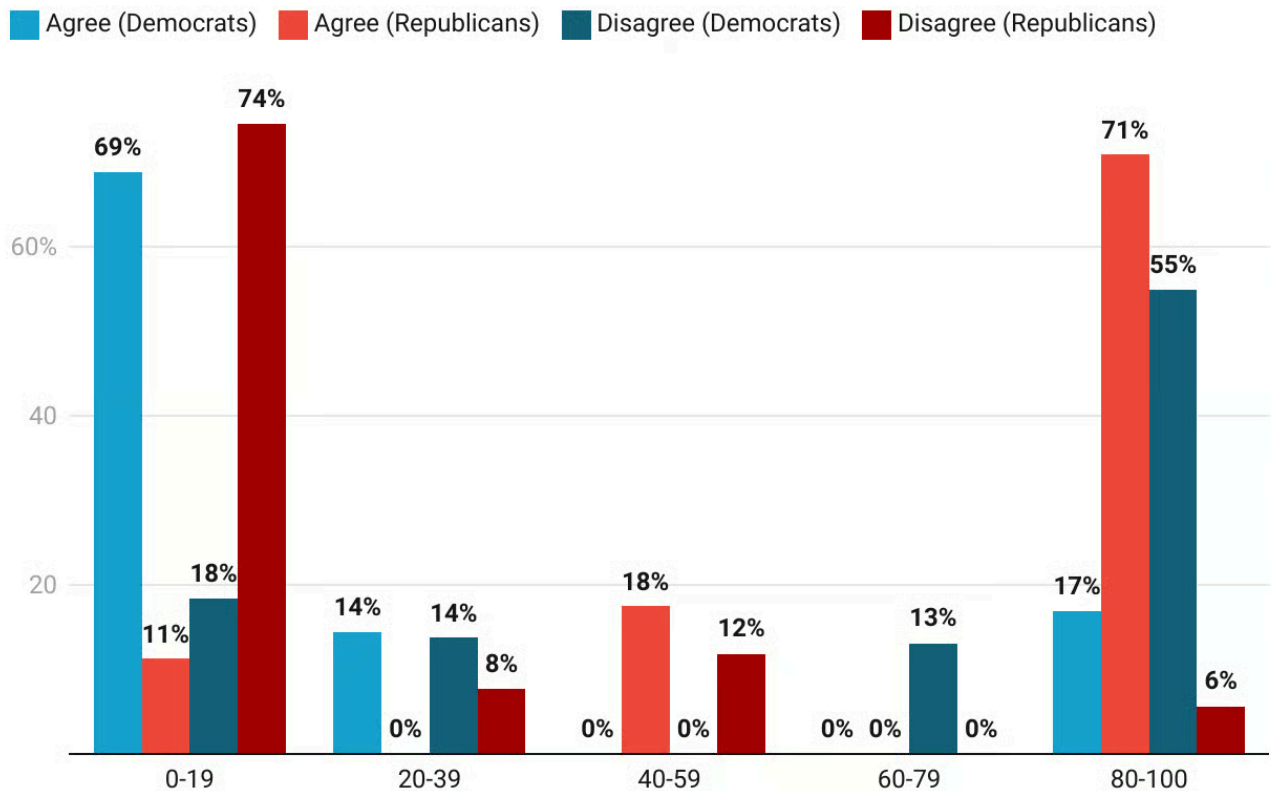
Similar to the overall views of the Court, partisanship is very clear when looking at the Grant Pass decision. Republicans have an overwhelmingly stronger opinion about the ruling



nearly equivalent numbers for Republicans on the strong agreement and strongly rejecting the idea of disagreeing with the decision points to a cohort where their minds are made up. In addition, just 20% of Republicans indicated a score between the two extremes.

Supreme Court Homelessness Ruling Opinion

Distribution of Opinion for **Democrat and Republican Voters Ages 18-39**



July 30, 2024

Figure 8: Supreme Court Homelessness Ruling Opinion - Distribution of Opinion for Democrats and Republicans Between the Ages of 18-39

For Democrats, the view is much more mixed. On the one hand, the overwhelming majority do not agree with the decision (17% indicated that they strongly agree), but at the same time, 55% strongly disagree. The nearly 15-point difference between these two responses is five times greater than responses from Republicans. Further, close to 25% of Democrats under the age of 40 indicate that their views live somewhere between the two bookends on the disagreement scale.

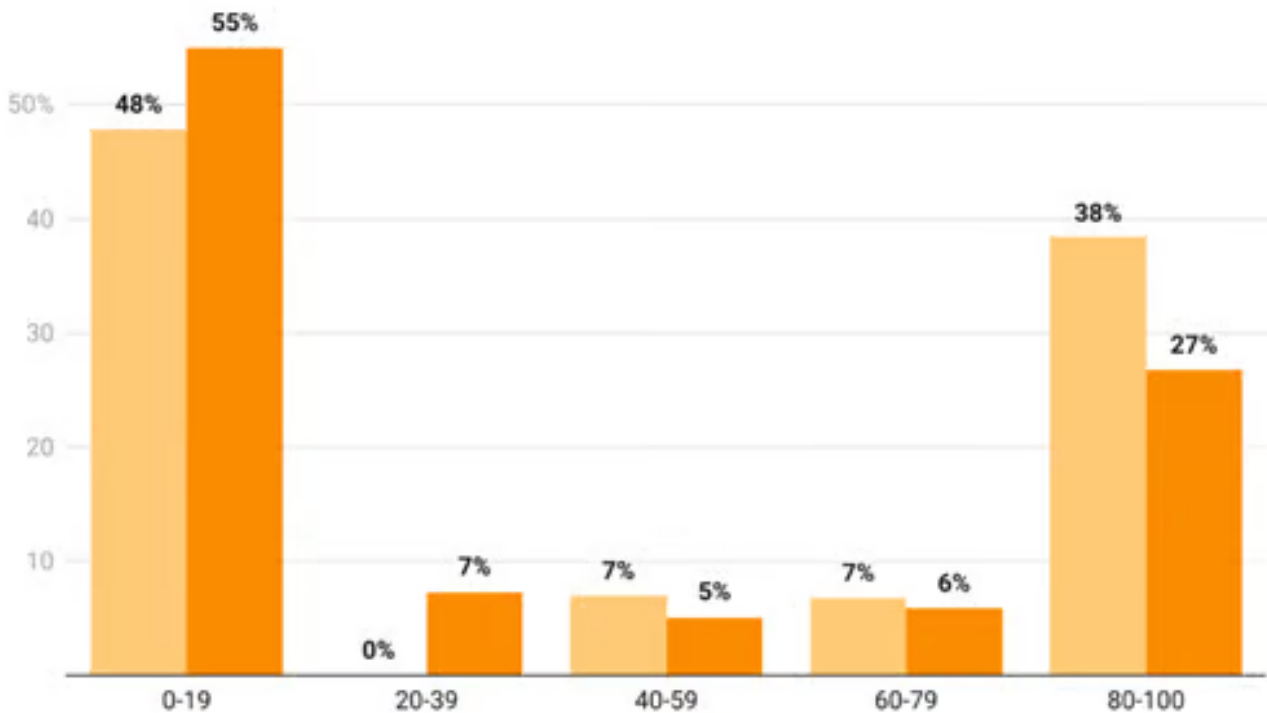
Unlike the younger Republicans and Democrats, younger Independents do not have as strong a reaction to either measurement regarding the ruling. Just 38% strongly agree with the ruling and 27% strongly disagree. On the other hand, 48% rule out the idea of agreeing



Supreme Court Homelessness Ruling Opinion

Distribution of Opinion for Independent Voters Ages 18-39

Agree (Independents) Disagree (Independents)



July 30, 2024

Figure 9: Supreme Court Homelessness Ruling Opinion - Distribution of Opinion for Independents Between the Ages of 18-39

Given these numbers, we were curious about how younger Americans view the solution to homelessness. Respondents were provided with a list of different solutions to homelessness and asked to allocate up to 100 points across the solutions, the results for which are displayed in Figure 10. Overall, younger voters split their allocations to the different solutions almost evenly, with the average allocation ranging between 21-29 points. Notably, young Black/African American voters believe that homeless populations should be provided with better access to temporary housing, although they only allocate 36 points for the same. The top solutions among young Democrats and young Republicans oppose each other with Democrats leaning towards providing better access to temporary housing (35) and Republicans leaning towards restricting homeless camping through legal and enforcement measures (35).



Solution to Homelessness

Demographics for Voters Ages 18-39

	Provide homeless populations with better access to temporary housing	Better crisis and drug/alcohol prevention and treatment services	Restrict homeless camping through legal enforcement measures	Increase funding for job and education programs
Black/African American	36	21	29	23
Democrats	35	29	11	24
Men	33	24	21	22
White	31	26	16	22
Overall	29	26	21	21
Independents	29	30	17	23
Women	25	29	20	19
Republicans	22	21	35	16
Latinx/Hispanic*	14	39	45	1

July 30, 2024 / *Smaller sample size

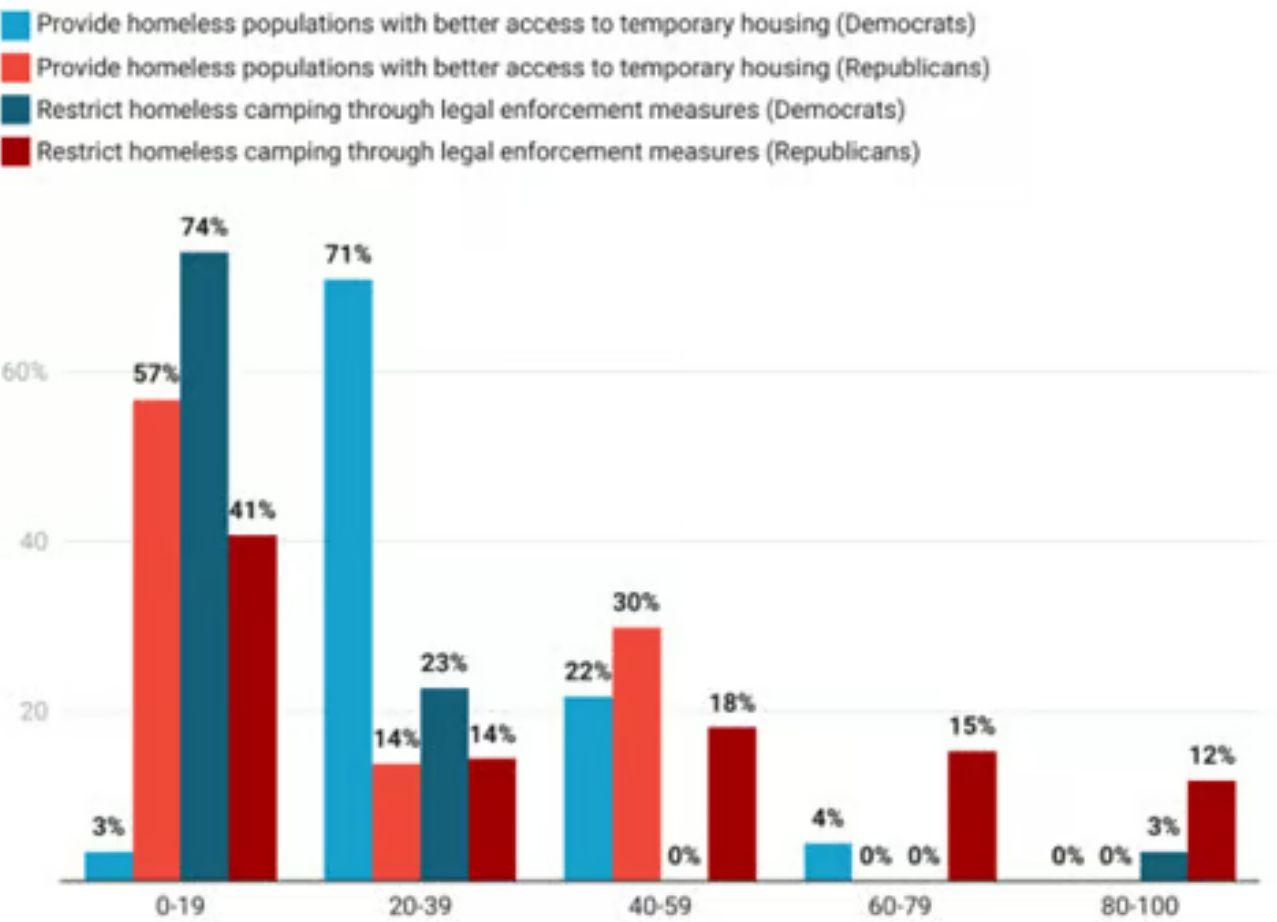
Figure 10: Solution to Homelessness - Demographics for Voters Ages 18-39

Looking deeper into the differences between the top solutions given by young Democrats and Republicans by dissecting the distribution of opinion (Figure 11), neither party is highly invested in the solutions. A majority of young Democrats (93%) that believe better access to temporary housing should be provided fall in the middle ranges (20-59 points). In the same range, there are only 32% of young Republicans who believe the majority of focus for ending homelessness is by restricting camping.



Solution to Homelessness

Distribution of Opinion for Top 2 solutions by Party Affiliation



July 30, 2024

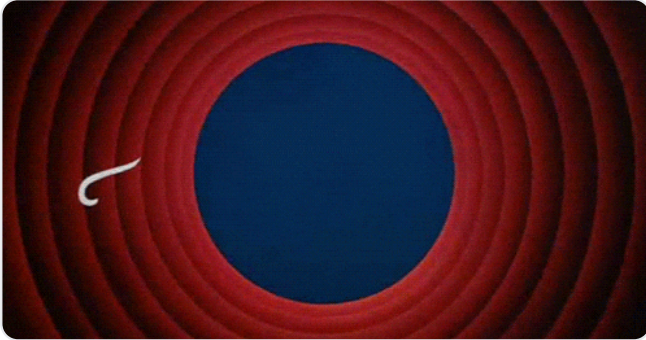
Figure 11: Solution to Homelessness - Distribution of Opinion for Top 2 Solutions by Party Affiliation

Conclusion

Overall, younger voters do not have overly positive or overly negative views of the Supreme Court. Many voters in this age cohort live somewhere in the middle of the scale when it comes to overall approval. Partisan leanings certainly factor into the views being held, but race and gender do as well. When it comes to one specific case (Grant Pass) the views on the case, and the potential solutions to homelessness, are more varied and not as baked in. While one interpretation of this data could be that younger Americans are less engaged and therefore do not have strong opinions, it is also credible to argue that the apathy has more to do with a general lack of respect for the institution. Either way, it does not point to a rosy picture for the future of public opinion around the Supreme Court.



Keep reading



Final Days

Our Last Update Pre-Election



A New Dawn for Democrats?

An update on our unprecedented times



Weekend Roundup: The Post-Debate Debate, Part 2

Did the September 10 Presidential Debate Change Anything?

[View more >](#)

 **Trendency's**
Political
Trendwatch

Our bi-monthly look at
interesting political
data

Home

Posts

E

Subscribe

in

@



